

24SMCV02004 24SMCV02004

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-27

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Case Number: 24SMCV02004 Hearing Date: August 27, 2026 Dept: P

Tentative

Ruling

Armen

Mkrtchyan v. Tatel Beverly Hills, LLC, Case No. 24SMCV02004

Motions:

(1)

Defendant's

Motion to Deem RFAs Admitted

Hearing

Date: August 27, 2026

Background

Plaintiff

Armen Mkrtchyan sues Defendant Tatel Beverly Hills, LLC for assault, battery, negligence, and intentional infliction of emotional distress (IIED). Mkrtchyan alleges that Tatel's employee attacked him without provocation or cause after he tripped over a potted plant in front of Defendant's store at 453 N. Canon Dr., Beverly Hills, CA. (Complaint, ¶¶ 8-9.)

On April

26, 2024, Mkrtchyan filed this complaint.

On January

24, 2025, Tatel moved to strike Mkrtchyan's claim for punitive damages. Mkrtchyan did not oppose the motion or appear at the hearing. On May 2, 2025, the Court granted Tatel's motion.

On

September 9, 2025, Tatel answered Mkrtchyan's complaint.

On January

14, 2026, Tatel filed the Motion to Compel Response to Request for Production of Documents, Set One; the Motion to Compel Response to Request for Statement of Damages; and the Motion to Compel Response to Special Interrogatories, Set One. Mkrtchyan does not oppose these motions.

On April

9, 2026, Tatel filed a Motion to Deem RFAs Admitted set for hearing on August 27, 2026. As of August 25, 2026, Mkrtchyan has not filed opposition.

Motion

to Deem Requests for Admission, Set One, Admitted

"Any party may obtain discovery . .

. by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared" (Code Civ. Proc., § 2033.250(a).)

If a party

to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the

hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Here,

Tatel served the Requests for Admission, Set One, on Mkrtchyan on May 13, 2025.

(Lake Declaration, ¶ 3.) On October 17, 2025, Tatel requested full and complete responses without objections by October 31, 2025. (Id. at ¶ 6.) As of the filing of this motion, Mkrtchyan has not responded. (Id. at ¶¶ 7-8.) Mkrtchyan has not filed opposition indicating that that he has produced responsive discovery since this motion was filed.

The Court

GRANTS Tatel's motion to deem RFAs admitted.

Sanctions

Sanctions

are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted. (Code Civ. Proc., § 2033.280(c); see also Cal. Rules of Court R. 3.1348(a) [the court can award sanctions under the Discovery Act in favor of a party seeking to compel discovery even though no opposition was filed, the opposition was withdrawn, or the requested discovery was provided to the moving party after the motion was filed].)

Tatel

requests attorneys' fees and the \$60.00 filing fee for this motion as sanctions. Tatel's counsel bills it at a rate of \$245 per hour. Counsel's rate is reasonable. Tatel's Counsel spent two hours preparing this motion and requests another three hours for replying and attending the hearing. Two hours for preparing this motion is reasonable. Because this motion is unopposed, one hour to attend the hearing is reasonable. The Court GRANTS Tatel \$795 (\$245 x 3 + \$60) in sanctions.

Conclusion

Tatel's

Motion to Deem RFAs Admitted is GRANTED. Tatel is awarded \$795 in fees.